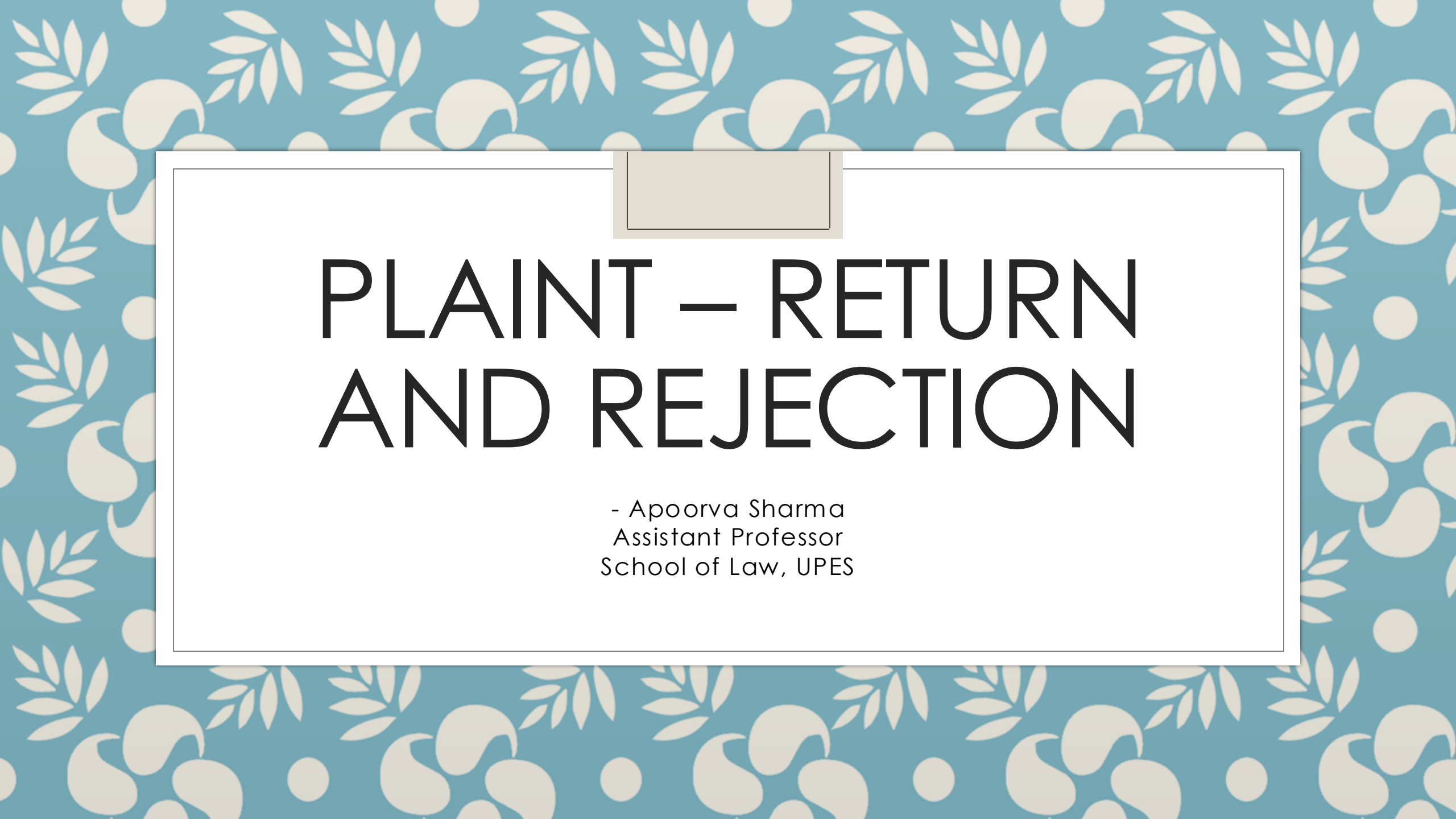




PLAINT – RETURN AND REJECTION

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Plaint – Order 7

- A statement of claim, a document, by presentation of which a suit is instituted. – Hansraj Gupta
- Pleading of plaintiff.
- Object- to state grounds of claim for which court's assistance is sought for.

Particulars of plaint

- 1. name, description, residence of P
- 2. name, description, residence of D
- 3. where P/D is minor/unsound → statement of the same
- 4. facts constituting cause of action & when it arose – e
- 5. facts showing that court has juris.
- 6. statement of value of subject matter of suit for purpose of jurisdiction & court fees
- 7. reliefs claimed by P in alternative
- 8. where P is suing in representative capacity → facts showing that he has interest in subject matter & has taken necessary steps which enable him to file a suit of such nature.
- 9. where P allowed a set-off or relinquished a part of claim → amt. so allowed / relinquished.

- (R2) where suit is for recovery of money → precise amt. claimed.
- where suit for a/c & mesne profits/ movables in possession of D/ undetermined debts → approx. value.
- (R3) where suit for immovable prop. → description of property sufficient to identify it.
- (R5) interest & liability of D in subject matter of suit.
- (R6) where suit is time barred → the grounds upon which exemption from law of limitation is claimed.
- PROVISIO: new ground of exemption- not in plaint - permissible by court only if not inconsistent with grounds shown in plaint.
- Addepalli Venkata Laxmi V. Ayinampudi Narasimha Rao 1994- Plaintiff claiming alternate reliefs. P cannot be compelled to choose one. Not chooses one, suit cannot be dismissed.

COA -

- 1. If no cause of action – plaintiff will be rejected.
- 2. Bundle of essential facts which P is required to prove to succeed. (Right of P to sue against D).
- 3. COA mentioned in plaintiff upon which P asks court to arrive at a conclusion in his favour.
- 4. Must arise before institution of suit.
- On basis of which suit is filed.
- When it arose → also to be mentioned to enable court & D to check if it did arise or not.
- **Kuldeep Singh v. Ganpat Lal** – Why particulars of COA? → Help court see if it is not barred by limitation, to see if D actually is or is not connected with essential material part of COA.
- R8 – where P seeks relief on several COA/claims founded upon same grounds – state them separately & distinctly.
- → To see if facts given by P constitute part of COA. Court to see if such facts constitute essential material part of COA.
- Substance not form is seen – Even if a small part of COA arises, suit is maintainable. But P would have to show jurisdiction on it.

- COA is a bundle of facts which taken with the law applicable to them gives plaintiff the right to relief against the defendant. Every fact which is necessary for the P to prove to enable him to get a decree should be set out in clear terms. Must mention some act done by the D – if no such act, no cause of action can possibly accrue.
- All acts of the D that lead to violation of legal civil right pf the P.

Church of Christ Charitable Society V. Ponniamman Educational Trust 2012 SC

- Valuation – of subject matter for court fee & pecuniary jurisdiction.
- When valuation diff. for both purposes → distinctly stated.
- Relief -
 - 1. where relief founded on sep. & distinct grounds → they should be stated.
 - 2. Where entitled to more than 1 relief → can claim any one or all of such reliefs – if omitted to claim relief without court's leave → afterwards not allowed to sue for that relief.
 - 3. Not necessary to ask for general relief.
 - 4. Can claim relief simply or in alternative → even though it may be inconsistent but must be maintainable & not prohibited by law.
- **Bhagwati Prasad v. Chandramaul** – relief not founded on pleadings can't be granted & no decision can be based on grounds outside pleadings – court can't go beyond pleadings & no party can lead evidence on issue not raised in pleadings.
- Events happening after institution of suit – rights of parties are determined on basis of date of filing of suit.
- → no COA on that date – suit dismissed even though COA arises after date of filing.
- Rule 9 – IMP.

- Plaintiff shall – at any stage of the suit- be returned to be presented to the court in which the suit should have been instituted.
- Procedure“: judge shall endorse on return the date of presentation and return, the name of the party presenting it, and a brief statement of the reasons for returning it.
- Rule 10A, 10B
- Amarchand V. Union of India: Plaintiff in proper suit after return is not considered continuation of the suit.

Return of Plaintiff – Rule 10

Rule 10A

- (1) Where, in any suit, after the defendant has appeared, the Court is of opinion that the plaint should be returned, it shall, before doing so, intimate its decision to the plaintiff.
- (2) Where an intimation is given to the plaintiff under sub-rule (1), the plaintiff may make an application to the Court-
 - (a) specifying the Court in which he proposes to present the plaint after its return,
 - (b) praying that the Court may fix a date for the appearance of the parties in the said Court, and
 - (c) requesting that the notice of the date so fixed may be given to him and to the defendant.
- (3) Where an application is made by the plaintiff under sub-rule (2), the Court shall, before returning the plaint and notwithstanding that the order for return of plaint was made by it on the ground that it has no jurisdiction to try the suit,-
 - (a) fix a date for the appearance of the parties in the Court in which the plaint is proposed to be presented, and
 - (b) give to the plaintiff and to the defendant notice of such date for appearance.

- (4) Where the notice of the date for appearance is given under sub-rule (3),-
- (a) it shall not be necessary for the Court in which the plaint is presented after its return, to serve the defendant with a summons for appearance in the suit, unless that Court, for reasons to be recorded, otherwise directs, and
- (b) the said notice shall be deemed to be a summons for the appearance of the defendant in the Court in which the plaint is presented on the date so fixed by the Court by which the plaint was returned.
- (5) Where the application made by the plaintiff under sub-rule (2) is allowed by the Court, the plaintiff shall not be entitled to appeal against the order returning the plaint.

Contd.

- When is a plaint returned? – when the court to which it is presented lacks the jurisdiction to hear and decide that case.
- If a suit is dismissed, the plaintiff cannot later apply for return of the plaint.
- No absolute law preventing a court from ordering the return of the plaint without an application for the same. If a court finds it lacks jurisdiction to hear a suit, it can still order the return of the plaint. – Shreem Electric Ltd V. Transformers & Rectifiers India Ltd. Bomb HC
- Returned plaint cannot be tried again by same court in absence of new specific pleadings.
- EXL Careers V. Frankfin Aviation Services Pvt. Ltd. 2020- SUIT IN NEW COURT HAS TO PROCEED DE NOVO ON RETURN OF PLAINT.

Rejection of plaint- Rule 11

- 1. where no COA is disclosed
- 2. where relief claimed is undervalued and P fails to correct the valuation within time fixed by the court.
- 3. where relief is properly valued but plaint is insufficiently stamped, and P fails to supply the requisite stamp-paper within time fixed by the court
- 4. suit appears from the statement in plaint to be barred by law.
- 5. not filed in duplicate – Sec. 26 r/w Order 4
- 6. fails to comply with rule 9
- Proviso: the time fixed by the court for the correction of the valuation or supplying of the requisite stamp paper shall not be extended unless the court, for reasons to be recorded, is satisfied that the P was prevented by any cause of exceptional nature for correcting the error within the time fixed and that refusal to extend such time would cause grave injustice to the P.

- K Akbar Ali V. Umar Khan 2021- object? – prevent frivolous litigation. Grounds are not exhaustive in nature.
- Abdulla Bin Ali V. Gallappa- power is exercised only when court is satisfied that even after considering all allegations in plaint- P shall not be entitled to any relief. PLAINT CANNOT BE REJECTED IN PART.
- Valuation of a suit: objective evaluation based ONLY on the averments in the plaint.
- Commercial Aviation travel co. case 1988- court to resort to only the materials in the plaint
- Dr. Om Prakash Rawal V. J. Amrit Lax Bahrim 1994 HP – valuation of a suit is directly linked with the jurisdiction of the court- issue of valuation is to be decided as a preliminary issue unless the suit is pending in a court of unlimited jurisdiction.

- G NAGARAJ V. BP MRUTHUNJAYANNA 2023 SC- O7R11 – only averments made in plaint are looked into and not the defence. COA has to be found only from the plaint and if some averments are inconsistent, it shall not be sufficient to reject the whole plaint.
- Test? – if plaint as a whole discloses cause of action. Courts cannot pre-judge the cause of action, legality, validity or the truth of the claim. Courts cannot examine merits of controversy/ evidence at this stage.

Cases

Barred by any statute – rule 11(d)

- Barred by any law in force – including limitation.
- Dahiben V. Arvinbhai Kalyanji Bhanusali 2024- agricultural land in dispute – P filed an application before collector that intention to sell the property to D – granted permission subject to land revenue code. D sold the property to other D. P sued both defendants that subsequent sale be cancelled as sale consideration fixed by the collector was not paid in full. D argued that no COA and barred by limitation.
- SC – by clever drafting of the plaint – an illusory COA should not be made to bypass the requirement of O7R11.
- It is important that COA arose at the time when suit is filed.
- Delay in filing suit is barred by Limitation Act and therefore, liable to rejection.

- P agreement with D1 – sale of IP – SALE DEED 1 – D1 did not pay entire cons.
- D1 sold the prop to D2 – sale deed 2
- P VS. D1, D2 – coa/relief- SALE DEED 2 SHOULD BE CANCELLED because D1 did not pay cons to P

Keshav Sood v. Kriti Sood 2023

- RJ DOES NOT APPLY WITH RESPECT TO ORDER 7 RULE 11.
- Court can only look at the averments of the plaint and documents produced by the P and not the defence. RJ involves consideration of pleadings in earlier suit, judgment of trial court and appeals etc.